

under R. 71(6) EPC could only be interpreted as approval of the communicated text, i.e. the text intended for grant.

In T. 265/20 the board found that the appellant was adversely affected by the decision to grant a patent, as all the drawing sheets as requested were missing from the text of the granted patent. The board referred to T. 2277/19 (see above), in which the facts were different from the outset. In that case, the original application contained the description pages, the claims and drawing sheets 1/18 to 18/18. During the examination proceedings, the applicant filed amended drawing sheets 1/7 to 7/7 to replace drawing sheets 1/18 to 18/18 of the application as filed. Drawing sheets 1/7 to 7/7 were included in the text communicated to the applicant under R. 71(3) EPC, but drawing sheets 8/18 to 18/18, were also included. The applicant then approved the text intended for grant subject to minor amendments. The board held the appeal inadmissible on the ground that the appellant was not adversely affected. The facts of the case in hand differed in that no drawings at all, i.e. neither the requested ones nor any others, were included in the text communicated to the applicant under R. 71(3) EPC and the Druckexemplar, and in that no explicit approval was given, but approval was rather deemed to have been given.

In T. 646/20 the applicant had approved the text intended for grant and the corresponding bibliographical data. The appellant filed an appeal against the decision to grant and requested correction of the designation of member states and the addition of further states. The board held that the applicant's approval in response to the notification under R. 71(3) EPC also related to the designated member states, and the decision to grant subsequently rendered by the examining division matched the contents of the notification and the applicant's approval. The board concluded that the appellant was not adversely affected.

For more details on this, see also chapter IV.B.3.2. "Approval of the text by the applicant."

(ii) Other cases

An applicant was 'adversely affected' and thus able to file an appeal where the examining division had rectified its decision but refused to grant reimbursement of the appeal fee (J 32/95, OJ 1999, 733).

The grounds forming the basis of a decision on rectification should not be interpreted to mean only the legal basis of the decision, but also the factual reasons supporting the legal basis. An applicant adversely affected by the **factual basis** was thus considered adversely affected in T. 142/96.

In J. 17/04 the board found that although the notice of appeal only referred to a correction of the decision under appeal under R. 88 and 89 EPC 1973, the appellant made therewith (implicitly) the allegation that the decision under appeal incorrectly limited the regional scope of the patent and that this decision should be set aside. The board was therefore satisfied that the appellant had sufficiently claimed to be adversely affected and the appeal was admissible.

In J 5/79 (OJ 1980, 71) the board ruled that an applicant whose priority right was found to have lapsed because he failed to file the priority documents was no longer adversely affected if re-established in his rights before the application was published.

c) Patent proprietor

In T 457/89, by analogy with G 1/88 (OJ 1989, 189), the board took the view that the appellant (patentee) was adversely affected by the decision revoking his patent, despite failing to comment on a communication within the time specified in an opposition division's invitation under Art. 101(2) EPC 1973. For, according to G 1/88, wherever non-compliance could lead to loss of rights, the EPC 1973 always expressly indicated this and Art. 101(2) EPC 1973 made no provision for any loss of rights.

In T 73/88 (OJ 1992, 557) the board ruled that if a patentee's request that his patent be maintained was upheld by a decision of the opposition division, he could not appeal against adverse reasoning in the decision (here, regarding his claim to priority) because he was not adversely affected by it within the meaning of Art. 107 EPC 1973.

One of the principles representing the fundamental value of legal procedural certainty was that a party was not to be regarded as adversely affected within the meaning of Art. 107 EPC 1973 by a decision which granted his final request. A request under R. 88 EPC 1973 for correction of a document as the sole reason for the appeal was inadmissible (T 824/00, OJ 2004, 5). In this case the proprietor had requested correction under R. 88 EPC 1973 (R. 139 EPC) of his letter withdrawing all requests (see also T 961/00 and J 17/04).

In T 528/93 a request was withdrawn during opposition proceedings and was thus not the subject of the contested decision. The board decided that a virtually identical request filed during appeal proceedings was not the subject of the appeal, because the appellant was not adversely affected by the decision of the opposition division as far as this request was concerned.

In T 327/13 the board found that, to establish whether a party has been adversely affected by a decision, it is not enough to consider the end result in isolation, but to consider the party's complete case, as is defined in Art. 12(2) RPBA 2007, in conjunction with the substance of the decision. Although the board noted that it was clear that the appellants were adversely affected by the opposition division's decision not to accede to the then main request, the decision had not been contested with the appeal. The board therefore concluded that they could not be regarded as "adversely affected" under Art. 107 EPC.

The argument that the discovery of a prior art disclosure in national proceedings meant that the patent proprietor had subsequently become adversely affected was rejected in T 591/05 – by granting the patent the department of first instance had acceded to the then valid request of the appellant.

In T.332/06 the patent proprietor's appeal was admissible at the time it was filed but became inadmissible when the statement of grounds was received, as the patent proprietor only contested that portion of the decision relating to the claims for the contracting state DE. However, these claims for DE had been allowed by the opposition division and were identical to the claims for DE in the patent proprietor's initial main request, which had been rejected only as regards the other contracting states. The patent proprietor was therefore not adversely affected with respect to DE.

In T.1783/12 the opposition division had refused the main request that the opposition be rejected as inadmissible. The appellant (patent proprietor) had therefore been adversely affected by this procedural aspect of the decision under appeal. However its statement of grounds of appeal had not set out why this aspect should be set aside, instead explicitly addressing only why the patent should be maintained as granted. Moreover, at first instance it had requested the maintenance of the patent in amended form, and this request had been granted. Summing up, the board held that at the relevant point in time under Art. 108 EPC – the filing of the statement of grounds of appeal – (a) no reasons had been given why the decision not to reject the opposition as inadmissible should be set aside; and (b) the substantive request for the maintenance of the patent as granted did not result from an adverse effect within the meaning of Art. 107 EPC. The appeal was therefore inadmissible.

In T.611/15 the opposition division maintained the patent in amended form based on auxiliary request VIII. The proprietor had argued that it had withdrawn only the auxiliary requests filed in writing before the oral proceedings, not the main request. However, the minutes stated that the representative of the proprietor announced that he would withdraw all other requests so that auxiliary request VIII as filed during the oral proceedings represented the main and sole request of the proprietor. In the absence of any request for correction of the minutes, the board assumed that these statements accurately reflected the state of the proprietor's requests. Given that the decision on this request was in favour of the proprietor it followed that the proprietor was not adversely affected by the decision.

d) Opponent

(i) Rule 82(1) EPC

Under R. 82(1) EPC (previously R. 58(4) EPC 1973), before the opposition division decides to maintain the patent as amended, it shall inform the parties of the text in which it intends to maintain the patent and shall invite them to file their observations within two months if they disapprove of that text.

The Enlarged Board found in G 1/88 (OJ 1989, 189) that the fact that an opponent had failed, within the time allowed, to make any observations on the text despite an invitation to do so under R. 58(4) EPC 1973 did not render his appeal inadmissible. To regard silence as betokening consent would be tantamount to withdrawal of the opposition with consequent surrender of the right to appeal. Surrender of a right could not be simply presumed. Deeming silence to be equivalent to surrender would also be inconsistent with

the logic of how the EPC operated, since it would be at odds with the way in which it dealt with the loss of rights. Where the legal consequence of an omission was to be a loss of rights, this was expressly stated. Furthermore, under Art. 164(2) EPC 1973 the Implementing Regulations had always to be interpreted in the light of the EPC. The interpretation of the Implementing Regulations which corresponded most closely to the principles of the EPC thus prevailed. It was a principle of the EPC, however, that parties' rights were safeguarded by the possibility of appeal to at least one higher-ranking tribunal. The Implementing Regulations should therefore be construed in such a way that R. 58(4) EPC 1973 was not allowed to interfere with the right of appeal under Art. 106 and 107 EPC 1973. This interpretation in the light of the sense and purpose of the procedure under R. 58(4) EPC 1973, leads to the same goal.

In T 156/90 the opponent had stated that he would have no objection to maintenance of the patent if the claims were amended in a specified way, which they were. His subsequent appeal was dismissed as inadmissible; his argument that the circumstances had changed and he was no longer bound by his consent failed.

In T 266/92 of 17 October 1994 the opponent had declared in opposition proceedings that he would withdraw his request for **oral proceedings** if the patentee agreed to an amended wording of the patent, as he did. The board held that the appellant was adversely affected within the meaning of Art. 107 EPC 1973, and was entitled to appeal; withdrawal of a request for oral proceedings did not in itself imply withdrawal of any other existing request (see also T 25/15).

In T 833/90 the board held that an appeal should be considered admissible if it was not clear or ascertainable whether the opponent (appellant) had agreed to maintenance of the patent. This was followed in T 616/08.

(ii) Opponent adversely affected

In T 273/90 the board concluded that legal uncertainty arising from **inadequate adjustment of the description** to amended claims constituted sufficient grievance, as the commercial interests of the appellant (opponent) could be adversely affected (likewise T 996/92).

In T 1178/04 (OJ 2008, 80) the board found the appeal filed by the opponent admissible even where the **validity of the opponent's status** was challenged following a disputed transfer, as a person was a party to proceedings for the purposes of Art. 107 EPC 1973 even if his entitlement to take part in such proceedings was brought into question. A decision that he was not entitled to take part in the proceedings would have the effect that he was no longer entitled to take part in the proceedings, but not that he had never been a party. See also T 1982/09.

It is not necessary for an opponent to have a **continuing interest**, financial or otherwise, in the prosecution of the opposition or appeal; it suffices that the decision does not accede to one of its substantive requests (T 1421/05 following T 234/86, OJ 1989, 79).

(iii) Opponent not adversely affected

In T. 299/89 the board considered the extent of entitlement to appeal of an opponent who in his opposition had requested only partial revocation but in his appeal wanted the whole patent revoked. It decided that this was determined by the scope of the original request made in the opposition. The opponent was only adversely affected within the meaning of Art. 107 EPC 1973 **to the extent that this request was not granted**, and he could not on appeal file a wider request.

An opponent is not adversely affected by **obiter dicta reasons** given in a revocation decision and favourable to the patent proprietor, and which it is appropriate for the opposition division to include to obviate remittal in the event of revocation being reversed on appeal (T. 473/98, OJ 2001, 231).

A respondent (opponent) which is not adversely affected by a decision revoking the patent is not entitled to file an appeal for the sake of **acquiring an independent appellant status** instead of the status of a respondent (party as of right) (T. 193/07). The board considered that its conclusion was in accordance with the established jurisprudence of the boards of appeal (see e.g. T. 981/01, T. 1147/01, T. 854/02, T. 1341/04). The board also pointed out that purely hypothetical considerations put forward by the opponent in support of the admissibility of its appeal concerning potentially disadvantageous situations that might occur (in the future) in related national litigation proceedings had no legal relevance under Art. 107 EPC.

In T. 1569/11 the opponents did not seek to challenge the decision of the opposition division (i.e. revocation of the patent) but the reasons for the decision. In particular, the opponents wanted the patent to be found invalid under Art. 100(c) EPC. The board noted that, in doing so, they misunderstood the nature and purpose of opposition appeal proceedings, which are not to re-examine a patent but to decide whether or not a first instance decision is correct (cf. T. 854/02; T. 437/98, OJ 2001, 231; T. 193/07).

In T. 735/13 the opponent had not raised during the oral proceedings before the opposition division any of the objections under Art. 100(a), (b) and (c) EPC to the second auxiliary request that it then had in its grounds of appeal. Since patents as granted and maintained could be opposed only for one of the reasons allowed under the EPC, the opponent had not been adversely affected by the maintenance of the patent as per the second auxiliary request, at least not for any of the reasons it had given on appeal.

2.4.3 Procedural status of the parties

a) Parties to appeal proceedings

Under Art. 107, second sentence, EPC the parties to proceedings before the department of first instance are also parties to the ensuing appeal proceedings, even if they have not personally filed an appeal. Pursuant to Art. 99(3) EPC, opponents as well as the patentee